

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS – 42 U.S.C. § 1983

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF MICHIGAN

Plaintiff: Andrew J. Pigors

v.

Defendant: Emily Watson

I. INTRODUCTION

This is a civil action for damages and injunctive relief brought pursuant to 42 U.S.C. § 1983. Plaintiff, Andrew J. Pigors, alleges that Defendant, Emily Watson, acting under color of state law and in coordination with public officers and judicial processes, violated Plaintiff's constitutional rights under the First and Fourteenth Amendments of the United States Constitution.

II. JURISDICTION AND VENUE

This Court has subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3). Venue is proper in the Western District of Michigan pursuant to 28 U.S.C. § 1391, as the events giving rise to these claims occurred in Muskegon County, Michigan.

III. PARTIES

Plaintiff: Andrew J. Pigors, a resident of Muskegon County, Michigan, and father of LDW, a minor child.

Defendant: Emily Watson, employed by Kent County Prosecutor's Office, and resident of Norton Shores, Michigan.

IV. FACTUAL ALLEGATIONS

1. Defendant has repeatedly filed and obtained a Personal Protection Order (PPO) under MCL 600.2950 based on false allegations, which have been used to interfere with Plaintiff's lawful parenting time.
2. Defendant coordinated with law enforcement and judicial processes to initiate at least seven PPO violation claims, none of which were substantiated by threats, violence, or criminal conduct.
3. Defendant intentionally timed service of PPO filings and hearing notices to cause prejudice, including late-night service and interference with holiday parenting time.
4. Defendant withheld the minor child from Plaintiff for over two months cumulatively in 2024 and 2025 without court order, while using the PPO to justify denial of custody rights.
5. These actions resulted in loss of access to Plaintiff's child, reputational harm, stress, and violations of Plaintiff's right to family integrity, access to court, and due process.

V. CLAIM FOR RELIEF – 42 U.S.C. § 1983

Plaintiff reasserts and incorporates all prior paragraphs. Defendant acted under color of state law by leveraging judicial orders and law enforcement processes to engage in conduct that violated Plaintiff's federal constitutional rights:

- Violation of First Amendment: Interference with right to parent and familial association
- Violation of Fourteenth Amendment: Denial of due process through improper legal service, false claims, and misuse of PPO statutes
- Malicious prosecution and abuse of process

VI. RELIEF REQUESTED

Plaintiff respectfully requests that this Court grant the following relief:

- Compensatory and punitive damages in an amount to be determined at trial
- Declaratory judgment that Defendant's conduct violated Plaintiff's rights
- Injunctive relief prohibiting further misuse of PPO and parenting time interference
- Costs and attorney fees under 42 U.S.C. § 1988
- Any other relief this Court deems just and proper

Respectfully submitted,

/s/ Andrew J. Pigors

Date: April 21, 2025